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Case Number: 24SMCV05045 Hearing Date: September 11, 2026 Dept: N

TENTATIVE RULING

Defendants Melanie Paige Speed and MedSpa Beverly Hills' Motion for Summary Judgment or in the Alternative Summary Adjudication is DENIED.

Defendants Melanie Paige Speed and MedSpa Beverly Hills to give notice.

REASONING

Request for Judicial Notice

Defendants Melanie Paige Speed and MedSpa Beverly Hills ("Defendants") request judicial notice of six permits issued for the subject premises from the City of Beverly Hills' online public records and records regarding Certificates of Occupancy issued for the premises. Defendants' request is GRANTED pursuant to Evidence Code section 452, subdivisions (c) and (h). (But see also *In re Joseph H.* (2015) 237 Cal.App.4th 517, 541 [stating that courts "can take judicial notice of official acts and public records, but ... cannot take judicial notice of the truth of the matters stated therein"].)

Plaintiff New Bedford Golden Triangle, LLC ("Plaintiff") requests judicial notice of two permits issued for the subject premises from the City of Beverly Hills' online public records, correspondence from the City of Beverly Hills, a provision of the Beverly Hills Municipal Code, and plans for the subject property. Plaintiff's request is GRANTED pursuant to Evidence Code section 452, subdivisions (b), (c), and (h).

In this action, Plaintiff alleges that it entered into a lease agreement with Defendant MedSpa Beverly Hills (MedSpa) for the premises at 360 North Bedford Drive, Suite 206, in Beverly Hills, and Defendant Melanie Paige Speed (Speed) signed a guaranty of that agreement. (Compl. ¶¶ 9-10.) Plaintiff alleges that Defendants repudiated the lease and caused damage to Plaintiff in the amount of \$582,014.56 due to breach of the lease and guaranty. (Compl. ¶¶ 11-12, 25.) Copies of the lease and guaranty are attached to the Complaint as Exhibits A and B, respectively. (Compl. ¶¶ 9, 10.)

Defendants now move for summary judgment or, in the alternative, summary adjudication of ten (10) issues. Issue Nos. 1 to 6 concern the first cause of action for breach of written lease, Nos. 7 and 8 concern the second cause of action for breach of written guaranty, and 9 and 10 concern the third cause of action for declaratory relief. (Notice of Motion, pp. 2:17-4:8.)

Before the Court discusses those Issues, it is helpful to review the rules of contract interpretation.

Rules of Contract Interpretation

“Under statutory rules of contract interpretation, the mutual intention of the parties at the time the contract is formed governs interpretation. (Civ. Code, § 1636.) Such intent is to be inferred, if possible, solely from the written provisions of the contract. (Id., § 1639.) The “clear and explicit” meaning of these provisions, interpreted in their “ordinary and popular sense,” unless “used by the parties in a technical sense or a special meaning is given to them by usage” (id., § 1644), controls judicial interpretation. (Id., § 1638.)” [Citations.] [Citation.]” (Waller v. Truck Ins. Exchange, Inc. (1995) 11 Cal.4th 1, 18.)

“An agreement is not ambiguous merely because the parties (or judges) disagree about its meaning. Taken in context, words still matter. ... ‘[W]ritten agreements whose language appears clear in the context of the parties’ dispute are not open to claims of “latent” ambiguity.’ [Citation.]” (Abers v. Rounsavell (2010) 189 Cal.App.4th 348, 356 (Abers).)

However, “[a]mbiguities arise when contractual language reasonably may be susceptible to more than one interpretation based upon the offered evidence regarding the material facts. [Citations.] Under these circumstances, trial judges, acting as a gatekeeper, may take a ‘preliminary look’ at proffered extrinsic evidence to determine ambiguity, because written words may have special meanings to the contracting parties that are not apparent on the face of the document itself.” (Abers, supra, 189 Cal.App.4th at p. 356.) The “extrinsic evidence is not admissible to add to, detract from, or vary the terms of a written [integrated] contract,’ but only to interpret the terms in the contract.” (Bernard v. State Farm Mutual Automobile Ins. Co. (2007) 158 Cal.App.4th 304, 309.)

“The question whether proffered extrinsic evidence renders a contract reasonably susceptible to ambiguity is a judicial function to be decided initially by the trial court” (Abers, supra, 189 Cal.App.4th at p. 357.)

If a trial court finds ambiguity in a disputed term in a contract, the court must deny the motion for summary judgment or summary adjudication and defer the issue to the trier of fact. (See e.g. Solis v. Kirkwood Resort Co. (2001) 94 Cal.App.4th 354, 361 (Solis) [“On a motion for summary judgment, the court may determine which inferences are “reasonably deducible from the evidence,” and may grant summary judgment if there is no conflict with other reasonable inferences or evidence.’ [Citation.] Here, there are two plausible interpretations of the scope of the release and [therefore] a jury must resolve its meaning” (italics removed)].)

On the other hand, “where the extrinsic evidence points only one way, or is uncontested, the meaning of the language in question may be ascertained as a matter of law” (Solis, supra, 94 Cal.App.4th at p. 360.)

First Cause of Action for Breach of Written Lease

Issue No. 1: Tenant Improvement (“TI”) Costs Defense

Defendants submit the following evidence to support their argument that: “Plaintiff’s first cause of action for Breach of Written Lease has no merit because [MedSpa] rescinded the Lease because Plaintiff failed to secure [the defendant’s] approval on the [TI] costs.” (Motion, p. 2:19-22.)

Plaintiff admitted in response to MedSpa’s First Set of Request for Admissions (“RFAs”) that MedSpa had the right to approve all construction costs that exceed \$174,120 under the Lease. (See Declaration of Juliet Sussman, Esq., filed January 22, 2026 (“Sussman Decl.”), Exh. 10 – a copy of the RFAs, p. 5:4-8; see also Compl. Exh. A (the Lease), Exhibit C Work Letter, top of page [“This Work Letter (‘Work Letter’) describes and specifies the rights and obligations of Lessor and Lessee with respect to the design, construction and payment for the completion of the Lessor’s Work within the Premises”]; id. at Section 1(a) [“‘Allowance’ shall mean up to an amount not to exceed \$174,120.00 (One-Hundred Seventy Thousand One Hundred and Twenty Dollars). The Allowance shall be utilized for the Lessor’s Work ...”]; id. at Section 1(e) [“‘Lessor’s Work’ shall mean the improvements described on the Plans and Specifications, as modified by any Change Orders,

including, without limitation, all materials and labor used in connection therewith, and any electrical, mechanical or plumbing work”]; id. at Section 1(h) [“‘Lessee’s Costs’ shall mean that portion of the Cost of the Work in excess of Lessor’s Costs, which Lessee shall pay directly to Lessor. Lessee shall, in accordance with, and subject to the terms and conditions, of Section 3 below, have the right to approve Lessee’s Costs”].)

Despite this, “Plaintiff approved and had its contractor—a longtime friend of over thirty (30) years—unilaterally proceed with construction pursuant to a \$244,525 bid without

Defendants consent or approval. (See Sussman Decl., Ex. 7 [Newman Depo.], 28:23-29:3;

103:25-104:2, 104:9-16, Ex. 21 therein [Contractor Bid]; See Sussman Decl., Ex. 8 [Contractor

Depo] 52:12-20; 56:20-57:11, Ex. 5 therein).” (Motion, p. 14:16-21.)

Based on that evidence, Defendants argue that, therefore, under Civil Code section 1689, MedSpa validly rescinded the Lease. (Motion, p. 14:2-9; Civ. Code § 1689, subd. (b) [stating that “[a] party to a contract may rescind the contract in the following cases: ¶ ¶ (2) If the consideration for the obligation of the rescinding party fails, in whole or in part, through the fault of the party as to whom he rescinds”].)

The Court finds that triable issue of material fact exists regarding whether Defendants notified Plaintiff of its alleged breach as required by the Lease for the following reasons.

Paragraph 13.6 of the Lease is titled “Breach by Lessor,” and states:

(a) Notice of Breach. Lessor shall not be deemed in breach of this Lease unless Lessor fails within a reasonable time to perform an obligation required to be performed by Lessor. For purposes of this Paragraph, a reasonable time shall in no event be less than 30 days after receipt by Lessor, and any Lender whose name and address shall have been furnished to Lessee in writing for such purpose, of written notice specifying wherein such obligation of Lessor has not been performed; provided, however, that if the nature of Lessor’s obligation is such that more than 30 days are reasonably required for its performance, then Lessor shall not be in breach if performance is commenced within such 30 days period and thereafter diligently pursued to completion.

(Lease, p. 12 [bold emphasis in original].)

Plaintiffs argue that they gave the required notice because on October 1, 2024, Defendant Speed emailed Plaintiff stating: “I do not approve the floorplan [sic] or bid as it is.” (Speed Decl., ¶ 10; Exh. 4; Motion, p. 14:22-25; Reply, p. 7:7-12.)

On the other hand, Armand Newman (Newman), Plaintiff’s authorized representative, testifies that prior to the parties’ communications on October 11 and October 16, 2024, “neither Speed nor MedSpa had given New Bedford any notice of an alleged Lessor default or identified any specific obligation New Bedford had failed to perform. No such notice was ever given. Therefore, MedSpa deprived New Bedford of its right under the Lease to cure any default that may have occurred.” (Declaration of Armand Newman, filed May 22, 2026, 10.)

The Court finds Paragraph 13.6(a) ambiguous because it does not specify what language must be included in the notice. Although Defendants argue that the language in Speed’s October 1, 2024 email was sufficient, Plaintiff disputes that fact. Because none of the parties have submitted extrinsic evidence explaining what the parties intended Paragraph 13.6(a) to mean at the time they entered into the contract, the Court cannot resolve that ambiguity (in other words, the Court cannot conclude which interpretation is correct as a matter of law) on this motion.

Defendants argue in their reply that Civil Code section 1689 did not require notice of breach and a chance to cure before a contract may be rescinded. (Reply, p. 5:3-20.) In addition, Paragraph 17 of the Lease states: "No remedy or election hereunder shall be deemed exclusive but shall, wherever possible, be cumulative with all other remedies at law or in equity."

However, Defendants have not cited any law in support of their implied argument that parties cannot contract terms that are different from Civil Code section 1689.

In any event, that argument was raised for the first time in Defendants' reply and, therefore, Plaintiff did not have notice or opportunity to respond. (Los Angeles Unified School Dist. v. Torres Construction Corp. (2020) 57 Cal.App.5th 480, 499 ["A trial court has discretion to consider new evidence in reply papers supporting a summary judgment motion as long as the opposing party has notice and an opportunity to respond"].) Although "[e]vidence which is used to fill gaps in the original evidence created by the opposition is particularly appropriate to consider in a reply" (ibid), the above argument raises an entirely new issue.

For those reasons, Defendants' request for summary adjudication of the first issue is denied.

Issue No. 2: TI Plans Defense

Defendants also argue that they had the right to rescind the Lease pursuant to Civil Code section 1692 because (1) the Work Letter required "a licensed architect selected by Lessor" to prepare the working Plans and Specifications for the TI, but (2) Plaintiff had Contractor Grigorian, an unlicensed architect, to draw the plans. (Motion, p. 15:7-18 [citing Paragraph 2.2 of the lease and Sections 1(c) and 2(A) of the Work Letter]; see also Reply, p. 9:8-16 ["When asked 'who drew these plans' [the contractor] testified 'I draw them.' (Sussman Decl., Ex. 8 [Contractor Depo], 54:13-14.) When asked 'Are these plans the ones that were submitted to the City?' he testified 'Yes.' (Id. 54:6-8.) When asked 'are you a licensed architect?' he testified 'No, I am not.' (Id., 15:16-17.) When asked 'did your crew hire any sort of architect for this job?' he testified 'No.' (Id., 69:24-70:1.) Clearly, a licensed architect did not draw the TI plans that were submitted to the City as Plaintiff would mislead the Court to believe" (italics removed)].)

Defendants also argue that Newman engaged in fraud when he falsely told Speed in text messages that the contractor was an architect. (Speed Decl., ¶ 8; Exh. 2 – copy of the text messages, p. 3.)

In opposition, Plaintiff argues, among other things, that Defendants also failed to notify it of that alleged "licensed architecture" breach as required by Paragraph 13.6(a) of the Lease. (Opposition, pp. 20:13-18, 20:26-21:1.)

The Court finds that Paragraph 13.6(a) is ambiguous regarding whether Defendants were required to notify Plaintiff of the alleged breach of its obligation to obtain a licensed contractor.

However, as with Issue No. 1, the parties have not submitted extrinsic evidence supporting their respective interpretations. Defendants, for example, have not submitted evidence showing that, at the time the parties entered the Lease, they did not intend Paragraph 13.6(a) to cover the Lessor's obligation to obtain a licensed architect.

For those reasons, Defendants' request for summary adjudication of the second issue is denied.

Issue No. 3: Construction Without Permits Defense

Defendants also argue that MedSpa validly rescinded the Lease under Civil Code section 1689 because Plaintiff violated the law on September 23, 2024, by starting construction without permits.

Specifically, Defendants present the following evidence. “The Work Letter required all TI work be performed ‘in strict compliance with Building standards... as well as applicable building codes, laws and regulations.’ (Speed Decl., Ex. 1 [Lease], pg. 2, para. 2.2 and Ex. C therein [Work Letter], ¶ 2(A).) The law requires a permit be issued before any construction commences. (Beverly Hills Code of Ordinances 9-1-107.)” (Motion, p. 16:14-19.) In its responses to MedSpa’s interrogatories, Plaintiff testified that: “Construction began on September 23, 2024.” (Sussman Decl., Ex. 10 – a copy of interrogatory responses, p. 3:4-15.) Then, in response to MedSpa’s RFAs, Plaintiff admitted that between September 1, 2024, and October 11, 2024, it did not have any permits approved for construction at the Property. (Sussman Decl., Ex. 10 – a copy of the RFAs, p. 5:14-18.) Therefore, Defendants argue, “Plaintiff violated the law on September 23, 2024 by starting construction without permits.” (Motion, p. 16:14-19.)

The Court finds that Defendants have not met their initial burden as to that issue. Beverly Hills Code of Ordinances 9-1-107(A) states: “Except as specified in this code, no building, structure or building service equipment regulated by this code shall be erected, constructed, enlarged, altered, repaired, moved, installed, improved, removed, converted or demolished unless a separate, appropriate application has been made and permit for each building, structure or building service equipment has first been obtained from the building official” (italics added). Here, Defendants have not shown that the construction did not qualify for those exceptions. (See *Severin Mobile Towing, Inc. v. JPMorgan Chase Bank, N.A.* (2021) 65 Cal.App.5th 292, 302 [“[A] defendant moving for summary judgment based upon the assertion of an affirmative defense ... ‘has the initial burden to show that undisputed facts support each element of the affirmative defense.’” [Citation]”).) As such, they have failed to show that Plaintiff breached the Work Letter’s requirement that all TI work must be performed in strict compliance with applicable building codes.

However, even if the Court were to find that Defendants have met their initial burden, Plaintiff argues that Defendants did not provide the notice required by Paragraph 13.6(a). As discussed, there are triable issues of material fact regarding what the parties intended that provision to mean at the time that they entered the Lease.

For those reasons, Defendants’ request for summary adjudication of the third issue is denied.

Issue No. 4: Failure to Deliver Possession Defense

Next, Defendants argue that their obligation to pay rent under the Lease never occurred because Plaintiff failed to deliver possession, pursuant to the Work Letter, by the deadline of October 1, 2024. (Motion, p. 1:18-8-15.)

Paragraph 3.3 states the following in relevant part.

3.3 Delay in Possession. Lessor agrees to use commercially reasonable efforts to deliver exclusive possession of the Premises to Lessee by the Commencement Date. If despite said efforts, Lessor is unable to deliver possession by such date, Lessor shall not be subject to any liability thereof, nor shall such failure affect the validity of this Lease or change the Expiration Date. Lessee shall not, however, be obligated to pay Rent or perform its other obligations until Lessor delivers possession of the Premises and any period of rent abatement that Lessee would otherwise have enjoyed shall run from the date of delivery of possession and continue for a period equal to what Lessee would otherwise have enjoyed under the terms hereof, but minus any days of delay caused by the acts or omissions of Lessee.

(Lease, p. 3, ¶ 3.3 [original bold emphasis removed; bold emphasis added].) The Lease defines the “Commencement Date” as January 17, 2025. (Lease, ¶ 1.3) However, the Lease also states in Paragraph 2.2 as follows:

2.2 Condition. Lessor shall deliver the Premises to Lessee in a clean condition on the Commencement Date or the Early Possession Date, whichever first occurs (‘Start Date’), and warrants that the existing electrical, plumbing, fire sprinkler,

lighting, heating, ventilating, and air conditioning systems ('HVAC'), and all other items which the Lessor is obligated to construct pursuant to the Work Letter attached hereto, if any, other than those constructed by Lessee, shall be in good operating condition on said date, that the structural elements of the roof, bearing walls, and foundation of the Unit shall be free of material defects, and that the Premises do not contain hazardous levels of any mold or fungi defined as toxic under applicable state or federal law.

(Lease, p. 2, ¶ 2.2 [original bold emphasis removed; bold emphasis added].) The Lease defines "Early Possession Date" as commencing October 1, 2024 "[i]f the Premises are available Lessee" (Id. at 1.4.)

The Court finds that Defendants have not met their initial burden of proving that the October 1, 2024 date, instead of the Commencement Date of January 17, 2025, was the deadline for Plaintiff to deliver possessions. As Plaintiff argues in its opposition, according to the language of the Lease, the October 1, 2024 date was conditioned on the Premises being "available." (Opposition, p. 18:14-17.) Defendants have not shown that the Premises was available within the meaning of the Lease by October 1, 2024. In fact, they suggest the opposite by arguing that permits for the electrical, plumbing, fire sprinkler, lighting, and HVAC were not in good operating condition by that date. (Motion, p. 8:21-24.) None of the parties have submitted extrinsic evidence explaining what the parties intended the word "available" to mean at the time they entered the Lease. Therefore, the Court cannot conclude at this time that, as a matter of law, Plaintiff was required to deliver possession by October 1, 2024.

Furthermore, similar to the other defenses, a triable issue exists regarding the meaning of Paragraph 3.6(a). With regard to this issue, the parties dispute whether Paragraph 3.6(a) of the Lease required Defendants to notify Plaintiff regarding its failure to timely deliver possession of the premises, and whether Plaintiff failed to do so. (Opposition, p. 18:18-22 ["Moreover, even assuming, arguendo, that New Bedford was obligated to deliver possession on October 1, 2024, and failed to do so, the failure would not have constituted a breach and thus would not have entitled MedSpa to terminate the lease because MedSpa never provided New Bedford with notice and an opportunity to cure"].) As discussed, the Court is unable to resolve the ambiguity in Paragraph 3.6(a) where there is no relevant extrinsic evidence submitted explaining that provision.

For those reasons, Defendants' request for summary adjudication of the fourth issue is denied.

Issue No. 5: Failure to Secure Certificate of Occupancy for Leased Premises Defense

Next, Defendants argue that Plaintiff's entire action fails because: "'Rental agreements involving units that... lack a certificate of occupancy are ordinarily regarded as unlawful and void.'" ([Espinosa v. Calva (2008) 169 Cal.App.4th 1393] ,at 1400; [Salazar v. Maradeaga (1992) 10 Cal.App.4th Supp. 1] at 4 (Salazar); Gruzen v. Henry, (1978) 84 Cal.App.3d 515, 517 (Gruzen); North 7th Street Associates v. Constante (2016) 7 Cal.App.5th Supp. 1.)" (Motion, p. 19:7-12.)

The Court notes that none of those cases contain the quote that Defendants have attributed to them.

The right case was instead cited in Defendants' supplemental separate statement. (See Defendants' Response to Plaintiff's Amended Statement of Additional Facts, filed August 17, 2026, Additional Fact No. 76, the right column ["'Rental agreements involving units that lack a certificate of occupancy are ordinarily regarded as unlawful and void.'" (Erlach v. Sierra Asset Servicing, LLC (2014) 226 Cal.App.4th 1281, 1283 [Erlach])"].)

However, the case cited, Erlach, concerned residential rental agreements, not a commercial office. Salazar, Gruzen, and North 7th Street Associates also concerned unlawful detainer actions against residential tenants. Defendants have not cited any law applying the principle in Erlach to the facts in this one.

In addition, even if the Court were to find that Defendants have met their initial burden, the Court finds that Plaintiff has met its burden of showing the existence of triable issues of material fact regarding the certificate of occupancy issue. Plaintiff's counsel has authenticated a document for the building titled "Application for the Erection of Buildings," that shows signatures

by the Department of Buildings confirming that: "Plans & Specifications [were] checked and found to conform to Ordinances State Laws, Etc.," "Plans and Application rechecked and approved." (See Declaration of Aaron Newman, ¶ 6; Exh. 1; see *Jazayeri v. Mao* (2009) 174 Cal.App.4th 301, 321 ["Although writings must be authenticated before they are received into evidence or before secondary evidence of their contents may be received ([Evid. Code] § 1401), a document is authenticated when sufficient evidence has been produced to sustain a finding that the document is what it purports to be (§ 1400). As long as the evidence would support a finding of authenticity, the writing is admissible. The fact conflicting inferences can be drawn regarding authenticity goes to the document's weight as evidence, not its admissibility".])

Based on the document Plaintiff has submitted, the Court finds that triable issues of material fact exist regarding what type of certificate of occupancy Plaintiff was required to have and whether Plaintiff failed to obtain it. For those same reasons, Defendants' arguments that the action fails because it is illegal to recover rent or occupy premises without a certificate of occupancy are unpersuasive.

Accordingly, Defendants' request for summary adjudication of the fifth issue is denied.

Issue No. 6: Lease Terminated by Its Own Terms Defense

Lastly, under the first cause of action for breach of written lease, Defendants argue that the claim and the entire action fail because the Lease has terminated by its own terms.

Specifically, they argue that the Lease states: "'If possession of the Premises is not delivered within 120 days after the Commencement Date, this Lease shall terminate.'" (Speed Decl., Ex. 1 [Lease], pg. 3, ¶ 3.3.) 120 days after the Commencement Date was May 17, 2025. It is undisputed Plaintiff never delivered possession. (See Armand Newman Declaration filed 10/23/25, ¶ 7; See Sussman Decl., Ex. 7 [Newman Depo.], pg. 59, ln.20-24; See also Speed Decl., ¶ 14). ¶ Furthermore, Plaintiff couldn't even legally deliver possession by May 17, 2025 even if it wanted to, as the Premises still lacked a certificate of occupancy by that date. (RJN, No. 7 [Certificate of Occupancy History], Sussman Decl., ¶ 18; Beverly Hills Code of Ordinances, 9-1-112(A).) As a result, the Lease was terminated, the obligation to pay rent never arose, and Plaintiff is entitled to nothing by way of its complaint. (Speed Decl., Ex. 1 [Lease], pg. 3, ¶ 3.3.)" (Motion, p. 22:2-14 [emphasis removed].)

As discussed, triable issues of material fact exist regarding the date Plaintiff was supposed to deliver possession. The Court has also found that Defendants have failed to meet their initial burden of proving their affirmative defense that the property required a certificate of occupancy and that Plaintiff failed to obtain one.

For those reasons, Defendants' request for summary adjudication of the sixth issue is denied.

Based on the foregoing, the request for summary adjudication of the first cause of action for breach of written lease is DENIED.

Second Cause of Action for Breach of Written Guaranty of Lease

Issues 7 and 8: No Enforceable Contract, and No Obligation to Pay Rent Defenses

Under Issues 7 and 8, Defendants recycle the arguments they made under the first cause of action. They argue that the breach of written guaranty claim fails because the Lease is void and unlawful (due to Plaintiff's alleged failure to obtain a certificate of occupancy), and the obligation to pay rent never arose (because possession was never delivered). (Motion, pp. 22:15-23:17.)

As discussed, triable issues of material fact exist regarding the certificate of occupancy issue, and the date possession was to be delivered.

Therefore, the request for summary adjudication of Issues 7 and 8, and consequently, the second cause of action for breach of written guaranty is DENIED.

Third Cause of Action: Declaratory Relief

Issue Nos. 9 and 10: Lease is Void and Declaratory Relief Duplicative of First and Second Causes of Action Defense

Defendants' arguments in Issue No. 9 that the Lease is void because of the lack of a certificate of occupancy and that the obligation to pay rent was waived by Plaintiff's failure to deliver possession have been discussed above and found to be unpersuasive.

Under Issue 10, Defendants argue that the declaratory relief claim is duplicative of the breach of contract claims. (Motion, pp. 24:3-25:7.)

The Court disagrees. Although the declaratory relief claim "seeks a judicial declaration that Defendant Melanie Paige Speed has repudiated the Lease through her explicit refusal to perform required obligations, specifically by refusing to pay costs for the commenced work. Plaintiff requests that the Court declare the Lease terminated due to Defendant's material breach and affirm Plaintiff's entitlement to damages, including but not limited to, future unpaid rent and all related costs for the duration of the Lease term." (Compl. 28.) That is a different form of relief than the money damages requested under the breach of contract claims. (See *Stronghold Engineering Inc. v. City of Monterey* (2023) 96 Cal.App.5th 1203, 1206 ["[A] declaratory relief action seeking interpretation of a contract is not a claim for money or damages, even if the judicial interpretation sought may later be the basis for a separate claim for money or damages ..."]; see also *id.* at p. 1208 ["A declaratory judgment action provides litigants with a quick, efficient means of resolving a disputed issue." [Citation.] 'Unlike coercive relief (such as damages, specific performance, or an injunction) in which a party is ordered by the court to do or to refrain from doing something, a declaratory judgment merely declares the legal relationship between the parties.' [Citation]"].)

Therefore, the request for summary adjudication of Issues 9 and 10 is also denied.

Consequently, the request for summary adjudication of the third cause of action for declaratory relief is DENIED.

Evidentiary Objections

Plaintiff's objections to the Declaration of Melanie Paige Speed (Nos. 1 to 3) are OVERRULED.

Defendants' objections are ruled upon as follows.

- Nos. 1 to 10 are OVERRULED to the extent counsel is seeking to authenticate the documents but otherwise SUSTAINED as to hearsay statements from the City of Beverly Hills.
- No. 11: OVERRULED. There is no hearsay in that statement and Defendants have not stated any other objection.
- No. 12, 20, 24, 26, 27: OVERRULED.

- Nos. 13-19: SUSTAINED for lack of personal knowledge and foundation.
- Nos. 21, 22, 25: SUSTAINED for improper opinion.
- No. 23: SUSTAINED for lack of relevance.
- Nos. 28 to 53 (objections to facts in separate statement): OVERRULED. (See Brown v. El Dorado Union High School Dist. (2022) 76 Cal.App.5th 1003, 1020 ["A separate statement is not, in and of itself, evidence. It is a document that summarizes evidence and creates a roadmap for the parties and court to work with in considering a motion for summary judgment"].)

Conclusion

Defendants Melanie Paige Speed and MedSpa Beverly Hills' Motion for Summary Judgment, or in the Alternative, Summary Adjudication is DENIED.